

DATA LICENSE AND PERMITTED USE AGREEMENT

Agreement No. DLPUA-2025-0088

Term	Detail
Agreement Number	DLPUA-2025-0088
Licensee	Nexacore Inc., 100 Innovation Drive, Boston, MA 02101
Licensor	VendorE Solutions Inc., 300 Technology Way, Austin, TX 78701
Effective Date	March 1, 2025
Annual License Fee	USD \$275,000
Initial Term	One (1) year, auto-renewing

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

(a) 'Licensed Data' means the consumer identity, demographic, behavioral, and household data files made available by Licensor to Licensee pursuant to this Agreement, as described in Exhibit A; (b) 'Permitted Purposes' means the specific uses of the Licensed Data authorized under Section 2; (c) 'Derivative Work' means any work that is based upon or derived from the Licensed Data; (d) 'Licensee Clients' means advertising and marketing clients that have contracted directly with Nexacore Inc. for data analytics or media activation services; (e) 'Prohibited Uses' means the activities described in Section 3.

2. GRANT OF LICENSE

Subject to the terms of this Agreement and Licensee's payment of the License Fee, Licensor hereby grants to Licensee a non-exclusive, non-transferable, limited license to access and use the Licensed Data solely for the following Permitted Purposes:

- (a) Development, enhancement, and maintenance of Licensee's proprietary consumer identity resolution graph and related data products, provided that such products are used solely for Licensee's internal purposes or for providing services to Licensee's direct clients;
- (b) Audience segmentation, targeting, and activation for advertising campaigns conducted by or on behalf of Licensee Clients, limited to the following verticals: financial services, retail and e-commerce, consumer packaged goods, telecommunications, and media & entertainment;
- (c) Attribution measurement, closed-loop reporting, and campaign effectiveness analytics provided to Licensee Clients as part of Licensee's managed services offering;
- (d) Household-level statistical modeling, propensity scoring, and predictive analytics for internal product development, provided no individual-level Licensed Data is exposed externally;

(e) First-party data onboarding, identity matching, and audience extension services performed by Licensee on behalf of its direct clients, subject to data governance requirements in Section 4.

3. RESTRICTIONS AND PROHIBITED USES

Notwithstanding Section 2, Licensee shall not, and shall ensure its personnel do not:

- (a) Resell, sublicense, transfer, or otherwise make available the Licensed Data or any Derivative Work in raw or substantially unmodified form to any third party without prior written consent of Licensor;
- (b) Use the Licensed Data in connection with any product, service, or business activity that directly competes with Licensor's core identity data business, including consumer identity resolution, data brokerage, or identity graph licensing;
- (c) Disclose or provide access to the Licensed Data to any affiliate or subsidiary not party to this Agreement without executing a separate written agreement with Licensor;
- (d) Use the Licensed Data for any government contracting, law enforcement, credit underwriting, insurance underwriting, or employment screening purpose;
- (e) Process, store, or transfer the Licensed Data outside of the United States and Canada without prior written consent of Licensor;
- (f) Combine the Licensed Data with sensitive personal data categories including health, financial account, or biometric data without obtaining prior written approval.

4. SUBLICENSING AND CLIENT ACTIVATION

4.1 Licensee may use the Licensed Data to provide aggregated, anonymized audience segments to Licensee Clients for media activation purposes. Licensee shall not provide any individual-level records from the Licensed Data to Licensee Clients under any circumstances. All client-facing outputs derived from the Licensed Data must be at an aggregated audience segment level with a minimum segment size of five thousand (5,000) individuals.

4.2 Each Licensee Client receiving services derived from the Licensed Data must be bound by a written agreement with Licensee that includes data protection obligations no less restrictive than those in this Agreement. Licensee shall maintain records of all Licensee Clients receiving such services and shall provide such records to Licensor upon written request.

5. AUDIT RIGHTS

5.1 Licensor shall have the right, upon thirty (30) days prior written notice and no more than once per calendar year, to audit Licensee's use of the Licensed Data to verify compliance with this Agreement. Such audits shall be conducted during Licensee's normal business hours and shall be subject to reasonable confidentiality protections.

5.2 Licensee shall bear the cost of any audit that reveals a material non-compliance. Licensor shall bear all audit costs in all other cases. 'Material non-compliance' means a violation that results in or is reasonably likely to result in financial harm to Licensor or unauthorized disclosure of Licensed Data.

6. INTELLECTUAL PROPERTY OWNERSHIP

All rights, title, and interest in and to the Licensed Data, including all intellectual property rights therein, are and shall remain the sole property of Licensor. This Agreement grants Licensee no ownership interest in the Licensed Data. Licensee acknowledges that the Licensed Data constitutes valuable proprietary information of Licensor and agrees to take reasonable steps to protect it from unauthorized disclosure.

7. CONFIDENTIALITY

The Licensed Data and the terms of this Agreement shall be treated as Confidential Information of Licensor. Licensee's confidentiality obligations shall survive termination or expiration of this Agreement for a period of three (3) years. Licensor's confidentiality obligations with respect to Licensee's Confidential Information shall likewise survive for three (3) years post-termination.

8. REPRESENTATIONS AND WARRANTIES

Licensor represents and warrants that: (a) it has the full right and authority to license the Licensed Data to Licensee; (b) the Licensed Data was collected and compiled in compliance with all applicable privacy laws, including CCPA and GDPR; (c) the Licensed Data does not infringe the intellectual property rights of any third party; and (d) Licensor maintains appropriate privacy notices and has obtained the necessary consents for the data collection and use authorized herein.

9. INDEMNIFICATION

9.1 Licensors shall defend, indemnify, and hold harmless Licensee from any third-party claim alleging that the Licensed Data itself (not Licensee's use thereof) infringes any third-party intellectual property rights or violates any applicable privacy law as it relates to Licensors's collection of the data.

9.2 Licensee shall defend, indemnify, and hold harmless Licensors from any third-party claim arising from Licensee's: (a) use of the Licensed Data outside the Permitted Purposes; (b) violation of any Prohibited Use; or (c) failure to maintain required client data protection agreements under Section 4.2.

10. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and continue for one (1) year (the "Initial Term"). Thereafter, this Agreement shall automatically renew for successive one-year terms unless either party provides at least sixty (60) days prior written notice of non-renewal. Upon renewal, the License Fee shall increase by five percent (5%) over the prior year's fee unless otherwise agreed in writing.

11. GOVERNING LAW AND DISPUTES

This Agreement shall be governed by the laws of the Commonwealth of Massachusetts, without regard to conflict of law principles. Any dispute shall first be subject to a thirty (30) day good-faith negotiation period. Unresolved disputes shall be submitted to binding arbitration under the American Arbitration Association Commercial Rules, with proceedings held in Boston, Massachusetts. Either party may seek injunctive or other equitable relief from any court of competent jurisdiction to prevent irreparable harm.

FOR MERKLE INC. ("Licensee")

Signature: _____

Name: _____

Title: _____

Date: _____

FOR APEX IDENTITY SOLUTIONS INC. ("Licensor")

Signature: _____

Name: _____

Title: _____

Date: _____